



This Mutual Non-Disclosure Agreement (the “Agreement”) is made as of July 2, 2026 (the “Effective Date”), between Everest Collective, LLC, a Texas limited liability company with its principal place of business at 8376 Davis Blvd, Suite 138, North Richland Hills, TX 76182 (“Everest”), and Southern Staffing Group, with its principal place of business at *[Client’s principal place of business]* (the “Client”). Everest and Client are each a “Party” and together the “Parties.” Each Party may act as both a discloser and a recipient of Confidential Information.

1. Purpose

The Parties wish to explore and pursue a business relationship concerning leadership, culture, and executive development services, and other professional services the Parties may discuss (the “Permitted Purpose”). This Agreement covers the Permitted Purpose and any current or future discussions, engagements, or collaborations between the Parties.

2. Confidential Information

“Confidential Information” means non-public information one Party (the “Disclosing Party”) discloses to the other (the “Receiving Party”), in any form — written, oral, visual, or electronic — that is marked or identified as confidential or that a reasonable person would understand to be confidential given its nature or the circumstances of disclosure. It includes, without limitation, Everest’s methodologies, frameworks, pricing, and intellectual property; Client’s business plans, financials, and employee or organizational data; and the existence and terms of the Parties’ discussions.

Confidential Information does not include information that:

- (a) is or becomes publicly known through no fault of the Receiving Party;
- (b) was already known to the Receiving Party without restriction before disclosure;
- (c) is independently developed by the Receiving Party without using the Disclosing Party’s Confidential Information; or
- (d) is rightfully received from a third party who owed no duty of confidentiality.

3. Obligations of the Receiving Party

The Receiving Party will: (a) use the Confidential Information only for the Permitted Purpose; (b) protect it with at least reasonable care, and no less care than it uses for its own confidential information of like importance; and (c) disclose it only to its employees, contractors, and advisors who need it for the Permitted Purpose and are bound by confidentiality obligations at least as protective as these. The Receiving Party is responsible for those persons’ compliance with this Agreement.

4. Compelled Disclosure

If the Receiving Party is legally compelled to disclose Confidential Information (for example, by subpoena or court order), it may do so, but will — where legally permitted — give the Disclosing Party prompt notice so the Disclosing Party can seek protection, and will disclose only the portion legally required.

5. No License; No Obligation

All Confidential Information remains the property of the Disclosing Party. Nothing in this Agreement grants any license or intellectual-property right other than the limited right to use Confidential Information for the Permitted Purpose. Nothing in this Agreement obligates either Party to proceed with any transaction, engagement, or relationship.

6. Return or Destruction

On the Disclosing Party's written request, or when the Permitted Purpose ends, the Receiving Party will return or destroy the Disclosing Party's Confidential Information, except for copies it must retain by law or that exist in routine electronic backups, which remain subject to this Agreement.

7. Marketing and Promotional Use

Client acknowledges that Everest is a visual firm. Everest will obtain Client's consent before using any images, video, or direct quotes that identify Client's executives or employees in promotional or marketing materials. Everest may use generic, non-identifiable images or footage of the general event setting, atmosphere, or group interaction for promotional purposes, provided such use does not reveal Client's Confidential Information or identify individual participants without consent.

8. Term and Survival

This Agreement begins on the Effective Date and continues during the Parties' relationship. The confidentiality obligations survive for three (3) years after the later of the end of the Parties' relationship or the last disclosure of Confidential Information. Confidential Information that qualifies as a trade secret remains protected for as long as it remains a trade secret under applicable law.

9. Equitable Relief

The Parties agree that a breach of this Agreement may cause irreparable harm for which money damages are not an adequate remedy. The non-breaching Party may seek injunctive or other equitable relief, in addition to any other remedies, without the need to post a bond where permitted by law.

10. Dispute Resolution; Governing Law

This Agreement is governed by the laws of the State of Texas, without regard to its conflict-of-laws rules. The Parties will first try in good faith to resolve any dispute through negotiation. If unresolved within thirty (30) days, the dispute will be settled by confidential, binding arbitration administered by the American Arbitration Association under its commercial rules, seated in Austin, Texas. Notwithstanding the foregoing, either Party may

seek injunctive relief in a court located in Austin, Texas to protect its Confidential Information, and the Parties submit to the exclusive jurisdiction of those courts for matters not subject to arbitration.

11. Relationship to Other Agreements

If the Parties also enter into a Master Services Agreement or other written agreement, this Agreement operates alongside it. If both this Agreement and another agreement address the confidentiality of the same information, the more protective terms control for that information.

12. General Provisions

Notices. Notices must be in writing and sent to the addresses on the signature page (or to the email each Party designates for notices), and are effective on delivery if hand-delivered or emailed with confirmation, or three (3) business days after mailing.

Assignment. Neither Party may assign this Agreement without the other's written consent, except to a successor in a merger or sale of substantially all assets, with notice to the other Party.

Entire Agreement; Amendments. This Agreement is the entire agreement between the Parties about its subject matter and replaces all prior discussions about it. Changes must be in writing and signed by both Parties.

Severability; Waiver. If any provision is unenforceable, the rest stays in effect. A Party's failure to enforce a right is not a waiver of it.

Counterparts. This Agreement may be signed in counterparts, including by electronic signature, each of which is an original.

The Parties acknowledge they have read and understood this Agreement and agree to be bound by it as of the Effective Date.

EVEREST COLLECTIVE, LLC


Signature

Brittany Tipton / Co-Founder
Name / Title

7/6/2026
Date

8376 Davis Blvd, Suite 138, North Richland Hills, TX
76182
Address / email for notices

SOUTHERN STAFFING GROUP (CLIENT)


Signature

Micah Clay/ Managing Partner
Name / Title

7/2/2026
Date

418 Wire Rd E. , Perkinston, MS 39573
Address / email for notices